

CARLETON CONDOMINIUM CORPORATION NO. 276

SCHEDULE A

RULES AND REGULATIONS
(Effective January 2011)

The following Rules respecting the use of the common elements and units are made to promote the safety, security and welfare of the owners as well as for the property or for the purpose of preventing unreasonable interference with the use and enjoyment of the common elements, and other units.

All previous Rules are hereby repealed.

The Rules of the Corporation are binding on each unit owner and his or her family, visitors, agents or occupants of the unit.

The Corporation may pass additional rules from time to time in accordance with the **Condominium Act, R.S.O. 1998**.

Owner: Shall include Owners, their families, visitors, agents, tenants and occupants of the units.

Any other words and phrases which are defined in the **Condominium Act, R.S.O. 1998** (as amended from time to time) or the regulations thereunder or any successor thereto, (**"the Act"**) shall have ascribed to them the meanings set out in the Act.

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1. Any loss, cost or damages incurred by the Corporation by reason of a breach of any Rules in force from time to time by any Owner, his or her family, guests, tenants or occupants of his or her unit shall be borne by such Owner and may be recovered by the Corporation against such Owner in the same manner as common expenses. Without limiting the generality of the foregoing, such losses, costs or damages shall include, but shall not necessarily be limited to, the following:
 - a) All legal costs incurred by the Corporation in order to enforce or in attempting to enforce these Rules.
 2. An administration fee in the amount of \$50.00, payable to the Corporation for any breach of these Rules that continues after initial notice has been served. The Corporation shall be deemed to have been abrogated or waived by reason of any failure to enforce the same, irrespective of the number of violations or breaches thereof which may occur.
 3. Each of these Rules shall be deemed independent and severable and the invalidity or unenforceability in whole or in part of any one or more of these Rules shall not impair or affect in any manner the validity, enforceability or effect of the remaining part of that Rule (if appropriate) and in such event the other part of the Rule (if appropriate) shall continue in full force and effect as if such invalid Rule or part of a Rule has never been included herein.
 4. No Owner shall do anything or permit anything to be done that is contrary to any Provincial or Federal Statute (including Canada's Criminal Code) or Municipal By-laws or any Rules, Regulations or Ordinances passed under any Statute or Municipal By-laws.
 5. No Owner shall do or permit anything to be done in his or her unit or bring or keep anything therein which in any way will:
 - a) increase the risk of fire or the rate of fire insurance on the building, or on property kept herein;
 - b) obstruct or interfere with the rights of other Owners, or in any way injure or annoy them;

- c) conflict with the laws relating to fire or with the Regulations of the Fire Department or which any insurance policy carried by the Corporation or any Owner;
 - d) conflict with any rules or ordinances of the Board of Health or with any statute or Municipal By-law.
- 6. This Rule is supplementary to the Corporation's right of access set forth in the *Condominium Act, 1998 and the Declaration*.
 - a) The Corporation may enter any unit, upon reasonable notice, in order to carry out the objects and duties of the Corporation.
Note, however, that in the case of an emergency it may be reasonable for the Corporation to gain immediate access to a unit (i.e., without notice.)
 - b) The Corporation may conduct "regular inspections" when a unit is sold or mortgaged; the Corporation conducts an inspection of the unit prior to issuance of a status certificate.
 - c) If, upon entry to a unit, the Corporation discovers any condition, which it considers unacceptable for any reason, the Corporation may:
 - i. Take steps to remedy the condition at the expense of the Owner of the unit;
 - ii. Give notice of the condition to the Owner of the unit;
 - iii. Take such steps as the Board of Directors deem appropriate.

However, the Owner of the unit, including any purchaser of the unit, shall be entirely and exclusively responsible for any such condition whether or not the condition has been detected by the Corporation, whether or not the Corporation has given any notice of the condition to the Owner or to the purchaser and whether or not the Corporation has taken any other steps related to the condition. In other words, no steps taken by the Corporation hereunder shall relieve the Owner, including the purchaser of the unit, from full responsibility for the condition of the unit and for any modifications that has been made to the unit or the common elements by any Owner of the unit, including any prior Owner of the unit. It is the duty of every Owner to make or to arrange all necessary inspections in order to ascertain the condition of the unit and any such modifications to the common elements, and then to take any appropriate corrective action.

- 7. The water closets and other water apparatus shall not be used for purposes other than those for which they are constructed and no sweepings, garbage, rubbish, rags, ashes, or other substances shall be thrown therein. Any damage resulting to them from misuse or from unusual or unreasonable use shall be borne by the Owner who, or whose family, guests, visitors, clerks or agents shall cause it.
- 8. Water shall not be left running unless in actual use. Owners shall take all reasonable measures to conserve water.
- 9. No sign, advertisement or notice other than the usual signs offering a unit for sale or rent with dimensions not exceeding two feet by three feet shall be inscribed, painted, affixed or placed on any part of the inside or outside of the units or common elements without the prior written consent of the Board.
- 10. No mops, brooms, dusters, rugs or bedding shall be shaken or beaten from any window, door or those parts of the common elements over which the Owner has exclusive use.
- 11. The Ontario government's new regulation, Ontario Regulation 97/08, called the, "Clothesline Regulation" now permits clotheslines on properties that were previously banned. If owners wish to install a clothesline in their backyard, the following criteria must be followed:
 - a) The clothesline is only permitted to be installed in the unit's backyard, not on any of the publicly-used common elements.
 - b) The clothesline cannot be nailed to any part of the vinyl siding of the house, doorframe, any of the fence(s) or on any nearby tree(s).

- c) Only freestanding models of clothesline will be permitted.
 - d) The size of the clothesline apparatus cannot overwhelm the size of the unit's backyard.
 - e) Only 1 freestanding clothesline apparatus is permitted per unit
 - f) Owners must request permission from the Board before installing such apparatus.
12. No awnings or shades shall be erected over and outside the windows without the prior written consent of the Board.
13. Nothing shall be placed on the outside of windowsills or projections. Note that window air conditioners are permitted provided that they are mounted in a safe and secure manner. Any and all damage resulting from the installation of a window air conditioner is the responsibility of the Owner. Any space left open around and/or above the air conditioning unit must be covered with plexi-glass.
14. The installation of central air conditioning units on the common elements is permitted with the written consent of the Board. The external part of the air conditioner may be placed in the backyard portion of the unit's exclusive use common area. In the case of end units (those having only one common wall), the air conditioner may be installed on the exterior of the sidewall within 15 feet of the back corner of the unit's foundation. The complete unit must be within four (4) feet of the exterior wall. If, in the opinion of the Board, the installation causes a problem to access of the common areas, the Board reserves the right to refuse installation of such a unit. Owners of units with side-mounted air conditioners are responsible to ensure that the area around the unit is kept landscaped to the Board's satisfaction and are liable for any and all damages as a result of its installation.
- The land on which the side mounted a/c unit is installed shall be considered to be an extension to the unit's exclusive use of the common area. The Corporation is not responsible for damage to the air conditioning units caused by any party, including those under contract with the Corporation.
15. The installation or use of water-cooled air conditioners is prohibited since water expenses for all units are a part of the common expenses.
16. The installation of eavestroughs is the Unit Owner's responsibility; however, the Corporation will be responsible for the cleaning of all the eavestroughs on an annual basis for preventative maintenance.
17. The Owner shall not place, leave or permit to be placed or left in or upon the common elements, including those of which he has the exclusive use, any debris or refuse, nor shall he or she directly carry or place same, in any area designated by the Corporation as a central garbage depository.
18. All recyclable items should be placed in the special boxes provided by the Municipality of Ottawa. Your blue and black boxes must be retrieved and stored inside your unit between garbage days. Loose newspapers and/or papers in bins should be secured.
19. Owners must comply with municipal guidelines and regulations regarding the collection of household waste. No hazardous goods, appliances, furniture or other special or unusual waste (i.e. mattresses, car batteries, oil, sofas, refrigerators, stoves, paints, paint thinners, etc.) may be disposed of as part of the regular garbage pick-up. Arrangements must be made with the appropriate waste removal company for pick-up of any such special waste. Please check www.ottawa.ca/takeitback for recycling information.
20. No stores of coal or any combustible or offensive goods, provisions or materials shall be kept on the property.
21. Nothing shall be thrown out of the windows or doors of the buildings.
22. Owners shall keep their exclusive use areas clean and tidy.

CCC 276 Rules and Regulations

23. No one shall harm, mutilate, destroy, alter or litter any of the landscaping work on the property – including grass, trees, shrubs, hedges, flowers, or flowerbeds.
24. Owners shall not overload existing electrical circuits.
25. Owners shall give prompt written notice to the Corporation of the following:
 - a) any structural, mechanical or other defect affecting the property;
 - b) any accident occurring on or in relation to the property;
 - c) any symptoms of a possible problem, such as water penetration, water seepage or leakage, cracks, unusual sounds or noises, smoke or odours; and
 - d) any defects in the water pipes, heating system or electrical system, etc.
26. Owners shall ensure that the level of humidity in the unit is reasonable. Owners must not allow the humidity levels in the units to cause condensation, mould or mildew or otherwise to result in harm to the property.
27. The following vehicles are permitted to be parked on the unit's driveways: a private passenger automobile, van, sport utility vehicle, motorcycle, station wagon, or one-half ton pick-up truck. No motor vehicle shall be parked or driven on any part of the property other than in the garage or on the unit's driveway.
28. No commercial vehicles of any kind are permitted to be parked on any part of the property, subject to Board approval.
29. No motor vehicle, tent, boat or trailer, snowmobile, machinery or equipment of any kind shall be left on any part of the property or any parking unit, except motor vehicles properly parked in accordance with these Rules.
30. No vehicle shall be parked at any time in the designated Fire Lanes or "No Parking" zones.
31. No repairs or adjustments to motor vehicles may be carried out on the common elements.
32. The driveways in front of each unit must be clean and free of materials or any condition likely to cause a nuisance, hazard or any damage to the property or risk of fire.
33. Only road worthy, plated and insured motor vehicles shall be kept on the property.
34. Unit Owners and Tenants are not allowed to park in the designated "Visitors Parking" lots at any time during the day or night.
35. Specific written permission from the Board is required for visitors using the "Visitors Parking" lots for **any overnight parking**. Any vehicle(s) not conforming to this regulation will be towed at the owner's risk and expense without notice.
36. Any vehicle placed on the property in contravention of these rules will be ticketed and/or towed at the risk and expense of the owner of the vehicle.
37. No auction sale shall be held on the property.
38. The sidewalks, entry, passageways, walkways and driveways used in common areas by the Owners/tenants shall not be obstructed by any of the Owners/tenants or used by them for any purpose other than for ingress and egress to and from their respective unit.
39. For the purposes of the Rules, "pet" means an animal which may be kept in a residence under the terms of the applicable By-laws of the Municipality. No animal, livestock or fowl, other than cats or dogs, shall be kept tied up on or at the unit. All pets must be licensed, if required by Municipal By-law or other

statute or regulation. All pets must be vaccinated in accordance with Municipal or Provincial Laws respecting the same.

40. No pet that is deemed by the Board, in its absolute discretion, to be a nuisance shall be kept by any person in any unit or in any other part of the property. Any person who keeps such a pet on the property, or any part thereof, or who is otherwise determined by the Board to be in violation of these Rules, shall, within two weeks of receipt of written notice from the Board, have such pet removed from the property.
41. No pet shall be allowed outside a unit unless it is in the custody of a responsible resident.
42. All pet droppings on common elements are to be promptly removed by the pet owner. The pet owner is responsible for ensuring that the Municipal "Poop and Scoop" By-law is respected.
43. No noise, caused by any instrument or other device, or otherwise, which in the opinion of the Board may be calculated to disturb the comfort of the other Owners, shall be permitted. Owners, their families, guests and visitors shall not create or permit the creation of or the continuation of any noise or nuisance which, in the opinion of the Board or the Property Manager, may or does disturb the comfort or quiet enjoyment of the property by other Owners, their families, guests, visitors and persons having business with them.
44. Applicable codes require that smoke alarms/detectors be installed and maintained in dwellings and that there be functioning closers for dwelling entry doors. In our Condominium, the smoke alarms and door closers are part of the units and accordingly must be maintained and repaired by the unit Owners.
45. The Corporation may conduct inspections of the smoke alarms and door closers in order to confirm that Owners are fulfilling their repair and maintenance obligations described above. During or following these inspections, the Corporation shall make any necessary repairs to, or replacement of, smoke alarms and /or door closers. In such cases, each Owner shall be deemed to have consented to have repairs done to his or her smoke alarm(s) or door closer(s) by the Corporation and the cost of such repairs shall be added to the Owner's contribution toward common expenses.
46. It is highly recommended that Unit Owners install carbon monoxide detectors in their units for health and safety reasons.
47. The Corporation, or any person authorized by the Corporation, may enter any unit, upon reasonable notice, in order to perform the objects and duties of the Corporation described in these Rules & Regulations. Unit Owners shall not refuse such entry. If a Unit Owner does refuse such entry, the Unit Owner shall be entirely and exclusively responsible for any losses, costs, damages or claims which may result from the Corporation's inability to fulfill its objects and duties described in these Rules & Regulations.
48. No television antenna, aerial, tower or similar structure and appurtenances thereto shall be erected and fastened to any unit, except in connection with common television cable system. Satellite Dish installations may be accepted in specifically designated areas with the Board's approval, subject to conformance with the specific Guidelines. All approvals must be granted in writing. Should Owner/tenant not meet the said guidelines, the cost of removing the Satellite Dish and repairing any damages deemed by the Board to be caused by said Satellite Dish will be borne by the Owner/tenant (see attached Guidelines.)
49. No building structure or tent shall be erected and no trailer, either with or without living, sleeping or eating accommodation, shall be placed, located, kept or maintained on the common elements, other than in a designated area with the permission of the Board.
50. Unit Owners are responsible for the costs associated with maintaining any additions or changes to the exterior of their unit from the original builder's plan.

Any damages caused to the unit as a result of a change or addition is the responsibility of the current unit Owner, even if the changes or additions were implemented by a previous Owner. If a unit Owner makes changes to the common elements without the prior written consent of the Board, he or she will be subject to the Act and the Declaration.

51. Unit Owners are permitted to enclose the backyard portion of the unit's common area. The enclosing fence must be of the same material, colour and design as the original fence to which it connects. To avoid disturbing the view from adjacent units, the height of the enclosing fence along its full length must be the same as the side fence to which it connects. Written approval by the Board is required for all fence enclosures.
52. Certain units are built closer to Sandhamn Private than others and as a result have smaller front yards. When viewed from the rear, these units are recessed when compared to adjacent connecting units. These recessed units may be allowed to extend their backyard side and enclosing fences to the same line as the adjacent units. Written permission of the Board is required on a case by case basis and the Board reserves the right to refuse a backyard extension if it creates a problem to access the common areas.
53. Owners are permitted to extend their patio decks where applicable. However, written approval of the plans by the Board is required. The Owners of units with extended patio decks are responsible for ensuring that the deck is built and maintained in a safe manner in accordance with all applicable building Codes and By-Laws. The deck must not be extended in such a manner that it alters the appearance of the unit's backyard when viewed from an adjacent backyard. As a result, the expanded deck (including stairs) must not extend beyond the highest portion of the side fence of the unit's backyard. All expenses incurred by the Corporation as a result of the extension of decks will be the full responsibility of the unit Owner. Maintenance expenses are also the Owner's responsibility.
54. In addition to the qualification for members of the Board of Directors identified in the Condominium Act, R.S.O. 1998, in order to be eligible to serve as President of the Corporation, an individual must have previously served on the Board of Directors C.C.C. No. 276 for a minimum of one (1) year.
55. After a new Board of Directors have been elected at an AGM, a member from the previous Board of Directors will attend the first three (3) Board meetings following the AGM and, if needed, be available as a resource person throughout the year (non-voting member).

**Carleton Condominium Corporation # 276
Satellite Dish Rules and Regulations**

Requirements:

1. A Satellite Dish may be installed only after receiving **the consent of the Board and the signing of a waiver by the Unit Owner** agreeing to CCC 276 Rules for installation of Satellite Dishes. The request for Satellite Dish installation must include:
 - a) a clear statement of where the Satellite Dish will be installed and the size of the Satellite Dish, and
 - b) a copy of the Owner's Insurance Policy which identifies Liability Insurance coverage.
2. **Before transferring ownership of units** when a unit is sold that has a Satellite Dish installed, it is the responsibility of the Vendor/Owner to either:
 - a) remove The Satellite Dish and repair affected common elements to its original condition, or
 - b) arrange to have the new Owner reapply for a Satellite installation approval by the Board.
3. The Board may not unreasonably withhold their consent once an Owner has made a request which meets these rules as identified herewith.
4. If any Homeowner or Tenant installs a Satellite Dish without following these rules established herewith, the Satellite Dish may be removed at the Owner's expense. If any such payments are not received within 90 days, lien procedures will be applicable.
5. The Board of Directors, Management (or their Delegate) may examine the installation of a Satellite Dish at any time.

Installation Guidelines:

1. **Only one Satellite Dish** per unit may be installed on the following areas:
 - a) exterior of a unit on the rear surfaces of the fascia (the flat part where the eavestroughs are installed)
 - b) the interior surface of the rear partition fence only

Note: Anyone without rear yard reception may apply for special permission to install on another location of their unit as they do not receive reception on the rear side of their units, pending Board approval.
2. No Satellite Dishes may be installed in front yards, backyards, rear gate fences, garage roofs, on any roof shingles, front siding, and/or front windows.
3. Owners must, whenever possible, install Satellite Dishes so that they are not visible from ground level at the front of the unit when installed on the fascia of the roof.
4. The Corporation will not be responsible for any costs associated with installation of Satellite Dishes.
5. Cabling related to the installation of Satellite Dishes must not be laid on the ground. Cabling on the outside of the unit must be installed in an inconspicuous manner and be of a colour blending with the siding or roof (depending on its location).
6. Owners are asked to install the smallest Satellite Dish that will meet their needs. Satellite Dishes may not exceed 30" in diameter.

7. If Owners residing near each other in a block of units wish to share the installation of a Satellite Dish, they may do so. All Owners of units involved in the installation of a Satellite Dish must sign the waiver. No Tenant may install a Satellite Dish on the unit without the permission of the Owner.

Damages:

1. Any extra costs for ice or snow removal due to the installation of a Satellite Dish must be borne by the Owner.
2. Any damages to the roof by installation of Satellite Dishes must be borne by the Owner. Any damages to the interior of a unit from a leak in the roof caused by installation of a Satellite Dish must be borne by the Owner. If repairs are required on the fascia of a roof which has a Satellite Dish, it will be the Owner's responsibility to cover the extra cost of repairs due to the Satellite Dish.
3. Any and all unforeseen costs related to the installation of a Satellite Dish are the responsibility of the Owner.
4. Any costs associated with damages from installation will be billed to the Owner's account. If any such payments are not received within 90 days, lien procedures will be applicable.

I _____ (applicant's name) understand and agree to the above Rules for installation of a Satellite Dish on my unit and fully understand that I will be held fully responsible for any damages caused from the Satellite Dish installation and any other related costs as indicated in the above Guidelines and Rules.

Date of Application

Unit Address

Location on Unit where Satellite Dish will be installed:

Owner's Signature: _____

Witness: _____

Owner's Name and Address:

TO BE SIGNED BY THE CORPORATION:

Date of Approval

Signature of Authorization